

House File 389

H-1091

1 Amend House File 389 as follows:

2 1. By striking everything after the enacting clause and
3 inserting:

4 <Section 1. Section 232.68, Code 2025, is amended by adding
5 the following new subsections:

6 NEW SUBSECTION. 7A. "*Nonpublic school*" means the same as
7 defined in section 280.2.

8 NEW SUBSECTION. 8A. "*Public school*" means the same as
9 defined in section 280.2.

10 Sec. 2. Section 232.68, subsection 8, Code 2025, is amended
11 by adding the following new paragraph:

12 NEW PARAGRAPH. e. An employee or agent of any public school
13 or nonpublic school.

14 Sec. 3. Section 232.71B, subsection 7, Code 2025, is amended
15 to read as follows:

16 7. *Facility or school visit.* The assessment may include a
17 visit to a facility providing care to the child named in the
18 report or to any public ~~or private~~ school or nonpublic school
19 subject to the authority of the department of education where
20 the child named in the report is located. The administrator of
21 a facility, or a public ~~or private~~ school or nonpublic school
22 shall cooperate with the child protection worker by providing
23 confidential access to the child named in the report for the
24 purpose of interviewing the child, and shall allow the child
25 protection worker confidential access to other children for the
26 purpose of conducting interviews in order to obtain relevant
27 information. The child protection worker may observe a child
28 named in a report in accordance with the provisions of section
29 232.68, subsection 3, paragraph "b". A witness shall be present
30 during an observation of a child. Any child aged ten years of
31 age or older can terminate contact with the child protection
32 worker by stating or indicating the child's wish to discontinue
33 the contact. The immunity granted by [section 232.73](#) applies
34 to acts or omissions in good faith of administrators and their
35 facilities or school districts for cooperating in an assessment

1 and allowing confidential access to a child.

2 Sec. 4. Section 232.71B, Code 2025, is amended by adding the
3 following new subsections:

4 NEW SUBSECTION. 21. *Board of educational examiners —*
5 *notice.* The department shall report the results of a child
6 abuse assessment to the board of educational examiners created
7 in section 256.146 if all of the following circumstances apply:

8 a. The alleged perpetrator is an employee or agent of any
9 public school or nonpublic school.

10 b. The alleged perpetrator holds a license, certificate,
11 authorization, or statement of recognition issued by the board
12 of educational examiners.

13 c. The department issues a finding that the alleged child
14 abuse meets the definition of child abuse.

15 NEW SUBSECTION. 22. *School district board of directors and*
16 *nonpublic school authorities — notice.* The department shall
17 report the results of a child abuse assessment to the board
18 of directors of a public school district, or the authorities
19 in charge of a nonpublic school, if all of the following
20 circumstances apply:

21 a. The alleged perpetrator is an employee or agent of a
22 public school under the authority of the board of directors, or
23 an employee or agent under the authority of the authorities in
24 charge of a nonpublic school.

25 b. The department issues a finding that the alleged child
26 abuse meets the definition of child abuse.

27 Sec. 5. NEW SECTION. 232.71E *School procedures —*
28 *rulemaking authority.*

29 1. The department of health and human services, in
30 consultation with the department of education, shall adopt
31 rules pursuant to chapter 17A prescribing procedures the board
32 of directors of each school district and authorities in charge
33 of each nonpublic school shall adopt, pursuant to section
34 280.17, for the handling of reports of child abuse alleged to
35 have been committed by an employee or agent of a public school

1 or nonpublic school.

2 2. Rules adopted under this section shall include but not be
3 limited to all of the following:

4 a. A public school or nonpublic school shall report child
5 abuse alleged to have been committed by an employee or agent of
6 a public school or nonpublic school to the department of health
7 and human services.

8 b. If child abuse alleged to have been committed by an
9 employee or agent of a public school or a nonpublic school
10 would, if true, constitute a criminal act harming a child, the
11 public school or nonpublic school shall also report the alleged
12 child abuse to law enforcement.

13 Sec. 6. Section 235A.15, subsection 2, paragraph c, Code
14 2025, is amended by adding the following new subparagraphs:

15 NEW SUBPARAGRAPH. (14) To the board of educational
16 examiners created in section 256.146, if the data concerns a
17 person that holds a license, certification, authorization, or
18 statement of recognition issued by the board of educational
19 examiners.

20 NEW SUBPARAGRAPH. (15) To the board of directors of a
21 public school district if the data concerns a person employed
22 or being considered for employment by the public school
23 district.

24 NEW SUBPARAGRAPH. (16) To the authorities in charge of
25 a nonpublic school as defined in section 280.2 if the data
26 concerns a person employed or being considered for employment
27 by the nonpublic school.

28 Sec. 7. Section 256.146, subsection 13, paragraph a, Code
29 2025, is amended to read as follows:

30 a. The board may deny a license to or revoke the license
31 of a person upon the board's finding by a preponderance of
32 evidence that ~~either~~ the person has been convicted of an
33 offense and the offense directly relates to the duties and
34 responsibilities of the profession ~~or that there has been~~
35 ~~a founded report of child abuse against the person.~~ Rules

1 adopted in accordance with this paragraph shall provide that in
2 determining whether a person should be denied a license or that
3 a practitioner's license should be revoked, the board shall
4 consider the nature and seriousness of the ~~founded abuse or~~
5 offense in relation to the position sought, the time elapsed
6 since the offense was committed, the degree of rehabilitation
7 which has taken place since the ~~incidence of founded abuse or~~
8 the commission of the offense, the likelihood that the person
9 will commit the same ~~abuse or~~ offense again, and the number
10 of ~~founded abuses committed by or~~ criminal convictions of the
11 person involved.

12 Sec. 8. Section 256.146, subsection 13, Code 2025, is
13 amended by adding the following new paragraph:

14 NEW PARAGRAPH. *0c.* The board shall deny or revoke a
15 license, certification, authorization, or statement of
16 recognition of a person described by any of the following:

17 (1) The person is in the central registry for child abuse
18 information established in section 235A.14 as having committed
19 founded child abuse.

20 (2) The person was found to have committed an act that would
21 constitute child abuse as defined in section 232.68 in another
22 state or foreign jurisdiction.

23 Sec. 9. Section 280.17, Code 2025, is amended by striking
24 the section and inserting in lieu thereof the following:

25 **280.17 Procedures for handling child abuse reports.**

26 1. For purposes of this section:

27 *a.* "Child abuse" means the same as defined in section
28 232.68.

29 *b.* "Child abuse assessment" means a child abuse assessment
30 under section 232.71B.

31 2. *a.* The board of directors of a school district and the
32 authorities in charge of a nonpublic school shall prescribe
33 procedures in accordance with rules adopted by the department
34 of health and human services under section 232.71E for handling
35 reports of child abuse alleged to have been committed by an

1 employee or agent of the public school or nonpublic school.

2 *b.* The board of directors of a school district and the
3 authorities in charge of a nonpublic school shall exercise
4 due diligence in assisting the department of health and human
5 services, as requested by the department of health and human
6 services, with a child abuse assessment related to child abuse
7 alleged to have been committed by an employee or agent of the
8 public school or nonpublic school.

9 3. The board of directors of a school district and the
10 authorities in charge of a nonpublic school shall place
11 on administrative leave an employee or agent of the public
12 school or nonpublic school who is the subject of an ongoing
13 child abuse assessment. The employee or agent shall also be
14 prohibited from entering school property while subject to an
15 ongoing child abuse assessment.

16 4. The board of directors of a school district and the
17 authorities in charge of a nonpublic school shall terminate
18 the employment of an employee or agent of a public school or
19 nonpublic school if the board of directors or authorities in
20 charge receive a notice under section 232.71B, subsection 22,
21 that the employee or agent has committed founded child abuse.>

BODEN of Warren